SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS

OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NUMBER	PAGE	OF
1177851	1	19

2. CONTRACT NO.	3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			1240LP27Q0008	11/05/2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (No collect calls)	8. OFFER DUE DATE/LOCAL TIME
	STEPHEN HOLLY	605-517-1170	11/19/2026 1000 MT

9. ISSUED BY — CODE 40LP

USDA-FS CSA INTERMOUNTAIN 4
324 25TH ST
OGDEN UT 84401-2310

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR:

- ☒ SMALL BUSINESS
- ☐ HUBZONE SMALL BUSINESS
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 561720

SIZE STANDARD: $22

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING / 14. METHOD OF SOLICITATION
☒ SEE SCHEDULE		☐	☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE 8233

USDA FOREST SERVICE
PAGOSA RANGER DISTRICT
180 SECOND PAGOSA ST
PAGOSA SPRINGS CO 81147

16. ADMINISTERED BY — CODE 40LP

USDA-FS CSA INTERMOUNTAIN 4
324 25TH ST
OGDEN UT 84401-2310

17a. CONTRACTOR/ OFFEROR — CODE — FACILITY CODE

TELEPHONE NO.

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY — CODE

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Period of Performance: 01/01/2027 to 12/31/2027				
0001	Daily Janitorial Cleanings Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 12/31/2027				
0002	Weekly Janitorial Cleanings Continued ...				

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☒ ARE NOT ATTACHED.

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED
		STEPHEN D. HOLLY	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 12/31/2027				
0003	Annual Janitorial Cleaning Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 12/31/2027				
1001	Option Year 1 - Daily Janitorial Services (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 12/31/2028 Period of Performance: 01/01/2028 to 12/31/2028				
1002	Option Year 1 - Weekly Janitorial Services (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 12/31/2028 Continued ...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE 32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 01/01/2028 to 12/31/2028				
1003	Option Year 1 - Annual Janitorial Cleaning (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 12/31/2028 Period of Performance: 01/01/2028 to 12/31/2028				
2001	Option Year 2 - Daily Janitorial Cleanings (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 12/31/2029 Period of Performance: 01/01/2029 to 12/31/2029				
2002	Option Year 2 - Weekly Janitorial Cleanings (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 01/01/2029 Period of Performance: 01/01/2029 to 12/31/2029				
2003	Option Year 2 - Annual Janitorial Cleaning (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 12/31/2029 Period of Performance: 01/01/2029 to 12/31/2029				
3001	Option Year 3 - Daily Janitorial Services (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING-CUSTODIAL JANITORIAL Delivery: 01/01/2030 Period of Performance: 01/01/2030 to 12/31/2030				

Continued ...

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
3002	Option Year 3 - Weekly Janitorial Services (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING- CUSTODIAL JANITORIAL Delivery: 12/31/2030				
3003	Option Year 3 - Annual Janitorial Cleaning (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING- CUSTODIAL JANITORIAL Delivery: 12/31/2030				
4001	Option Year 4 - Daily Janitorial Cleanings (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING- CUSTODIAL JANITORIAL Delivery: 12/31/2031 Period of Performance: 01/01/2031 to 12/31/2031				
4002	Option Year 4 - Weekly Janitorial Cleanings (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING- CUSTODIAL JANITORIAL Delivery: 12/31/2031 Period of Performance: 01/01/2031 to 12/31/2031				
4003	Option Year 4 - Annual Janitorial Cleaning (Option Line Item) Product/Service Code: S201 Product/Service Description: HOUSEKEEPING- CUSTODIAL JANITORIAL Delivery: 12/31/2031 Period of Performance: 01/01/2031 to 12/31/2031				

Statement of Requirement

The United States Department of Agriculture, Forest Service, requires janitorial services for the Pagosa Ranger District located at 180 Pagosa Street, Pagosa Springs, Colorado.

Janitorial services include all management, supervision, personnel, transportation, labor, equipment, tools, materials, supplies, and other items and services necessary to perform janitorial services in accordance with the requirements of this solicitation and the attached Performance Work Statement.

See **Attachment 1 – Janitorial Performance Work Statement** for complete specifications.

See **Attachment 2 – Schedule of Items** for a list of contract line items and pricing requirements.

Schedule of Items

Offerors shall submit pricing for all Contract Line Item Numbers, including the base period and all option periods, using **Attachment 2 – Schedule of Items**.

Failure to submit pricing for all required items, including the base period and all option periods, may result in the quotation being excluded from further consideration.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, offerors must submit pricing for all items.

Vendor Name: _____

Vendor UEI: _____

Technical Data

Technical data and supporting documentation associated with this solicitation are available through the following sources:

1. Solicitation Attachments

The following documents are included as attachments to this solicitation and can be accessed through the “Attachments/Links” section of the posting:

- **Attachment 1 – Janitorial Performance Work Statement**

- **Attachment 2 – Schedule of Items**
- **Attachment 3 – Facility Layout**
- **Attachment 4 – Wage Determination**
- **Attachment 5 – Quality Assurance Surveillance Plan**
- **Attachment 6 – List of Sustainable Products**
- **Attachment 7 – Experience Questionnaire**

Service Contract Labor Standards

This acquisition is subject to the Service Contract Labor Standards.

Offerors must request additional wage determinations no later than two calendar days before solicitation close. Offerors who intend to perform in a place or area of performance for which a wage determination has not been attached or requested may nevertheless submit quotations. However, a wage determination shall be incorporated in the resultant contract, and there shall be no adjustment to the contract price.

The applicable wage determination is included as **Attachment 4 – Wage Determination**.

Site Visit

There is no scheduled site visit for this solicitation.

Interested offerors who would like to tour the Pagosa Ranger District site shall contact:
Email: brandon.caley@usda.gov

Offerors are responsible for accounting for all site conditions affecting performance in their quotations.

Award Type

It is anticipated that a firm-fixed-price requirements contract consisting of one one-year base period and four one-year option periods will be awarded as a result of this solicitation.

The Government may also extend services under FAR 52.217-8, Option to Extend Services, for up to six months.

The total duration of this contract shall not exceed five years and six months.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services, is not applicable to this solicitation. In lieu of this provision, quotations will be evaluated in accordance with FAR 12.203 based on the criteria listed below.

Award will be made to the responsible offeror whose quotation represents the lowest price technically acceptable offer with acceptable or neutral past performance.

Evaluation Factors

Quotations will be evaluated using the following factors:

1. Price
2. Technical Acceptability
3. Past Performance

Price

Offerors shall provide pricing as requested in **Attachment 2 – Schedule of Items**.

Any quantity price discounts and discounts for prompt payment should be included in the quotation.

Total evaluated price will include the base period, all option periods, and the potential extension of services under FAR 52.217-8 for up to six months.

Failure to propose pricing for the base period and all option periods on individual line items may result in the quotation being excluded from further consideration.

The offeror's quotation will be evaluated in accordance with FAR 12.204 to determine whether the price is fair and reasonable.

For purposes of evaluation, the potential need to exercise the option under FAR 52.217-8 to extend the period of performance for a maximum period of six months beyond any period of performance will be considered the same for all offerors.

The Government will consider that, if FAR 52.217-8 is exercised, it will be exercised at the same rates and terms, other than length of performance, as the period of performance being extended. For evaluation purposes only, the Government will use the rates specified in the final option period and add the cost of six months to the prices proposed for the base period and all option periods to determine total evaluated price.

The Government will determine whether the total evaluated price, including the options available under FAR 52.217-8, is fair and reasonable.

Technical Acceptability

Technical acceptability will be evaluated on an acceptable/unacceptable basis.

A quotation will be rated acceptable if it demonstrates the offeror's ability to provide a sound and compliant approach that meets all solicitation requirements and shows a thorough understanding of the required services.

It is the offeror's responsibility to ensure its quotation clearly demonstrates its capability to meet all requirements.

At a minimum, offerors shall submit the following information and documentation to be considered responsive and to have their quotations evaluated:

1. Technical Approach

The offeror shall provide a detailed explanation of its ability to perform the required services. A simple statement of capabilities is not sufficient.

The offeror shall address how it will accomplish the requirements of Parts A, B, and C of the Performance Work Statement.

The quotation shall include a detailed explanation of any requirement listed in the Performance Work Statement that cannot be successfully accomplished by the offeror.

Offerors are advised that the Government intends to award without discussions. Any exception to the solicitation or Performance Work Statement requirements may cause the quotation to be found technically unacceptable.

2. Key Personnel

The offeror shall provide the name of the primary janitor who will access the Government facility.

The offeror shall include a resume for the primary janitor demonstrating a minimum of six months of janitorial or directly related experience, along with references.

A letter of commitment from the primary janitor may be required after solicitation close but before final award.

The quotation shall also include the name of the On-Site Quality Control Manager.

If the offeror is unable to obtain contingent commitment letters from key personnel, the offeror shall submit a written statement to that effect and describe its efforts to obtain contingent letters.

In lieu of contingent letters, the offeror may submit a staffing plan. The staffing plan shall include evidence of the contractor's demonstrated ability to address personnel issues, hire and maintain qualified staff, fill immediate requirements, and provide staff with necessary support and oversight.

The staffing plan shall also include the recruitment and selection process for all staff performing under this contract.

3. Quality Control Plan

The offeror shall submit a Quality Control Plan.

The Quality Control Plan shall describe the actions the contractor will take to control and monitor performance of services to ensure compliance with the Performance Work Statement.

4. Biobased and Sustainable Products

The offeror shall include a list of biobased and sustainable products proposed for use during contract performance.

The list shall identify all proposed biobased products, including brand names and a summary of product attributes.

Examples of biobased and sustainable products are provided in **Attachment 6 – List of Sustainable Products**.

Past Performance

The Government may use any references provided by the contractor, information available from prior or current USDA contracts or orders, information from other Federal Government sources, and information available in the Contractor Performance Assessment Reporting

System to determine whether the offeror has acceptable, neutral, or unacceptable past performance.

Past performance will be evaluated using the following rating system:

- **Acceptable:** The contractor demonstrates an ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- **Neutral:** The offeror does not have a past performance record.
- **Unacceptable:** The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

Evaluation Method

The Government will evaluate quotations using a lowest price technically acceptable methodology.

Only the lowest-priced quotation will be evaluated for technical acceptability and past performance.

If the lowest-priced quotation does not receive an acceptable technical rating and an acceptable or neutral past performance rating, the Government will evaluate the next lowest-priced quotation.

This process will continue in order of price until the Government identifies the lowest-priced, technically acceptable quotation with acceptable or neutral past performance.

Award will be made to the responsible offeror submitting the lowest-priced technically acceptable quotation with acceptable or neutral past performance.

Delivery and Performance Information

Services shall be performed at:

Pagosa Ranger District
180 Pagosa Street
Pagosa Springs, Colorado 81147

The period of performance shall be identified in the SF-1449 and resulting contract.

Qualification Requirements

Offerors, or the product or service, are not required to meet a separate qualification requirement to be eligible for award.

Other Information

The Government intends to make one award from this solicitation.

Quoter shall submit pricing for all items.

Quoters shall submit all required technical information, pricing, and past performance information by the solicitation closing date and time identified in the SF-1449.

Document types acceptable for submission are PDF, Microsoft Word-compatible files, and Microsoft Excel-compatible files.

Federal Acquisition Regulation and Agriculture Acquisition Regulation Clauses and Provisions

The clauses and provisions contained herein are applicable to any order or contract awarded as a result of this solicitation.

The terms and conditions set forth herein supersede all other terms and conditions.

Acceptance of the order in accordance with FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul, system updates may lag policy updates. The System for Award Management may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text.

Upon request, the Contracting Officer will make their full text available.

The full text of the clause may also be accessed electronically at:

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

Mandatory Commercial Product and Commercial Service Clauses

The following clauses are incorporated by reference:

- FAR 52.212-4, Terms and Conditions—Commercial Products and Commercial Services, Nov 2025
- FAR 52.203-17, Contractor Employee Whistleblower Rights, Nov 2023
- FAR 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements, Jan 2017
- FAR 52.222-50, Combating Trafficking in Persons, Nov 2025
- FAR 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving, May 2024
- FAR 52.232-39, Unenforceability of Unauthorized Obligations, Jun 2013
- FAR 52.232-40, Providing Accelerated Payments to Small Business Subcontractors, Mar 2023
- FAR 52.233-3, Protest After Award, Sep 2025
- FAR 52.233-4, Applicable Law for Breach of Contract Claim, Sep 2025
- FAR 52.240-91, Security Prohibitions and Exclusions, Nov 2025
- FAR 52.244-6, Subcontracts for Commercial Products and Commercial Services, Nov 2025

Additional Applicable FAR Clauses

The following clauses are incorporated by reference, as applicable to this janitorial services requirement:

- FAR 52.204-9, Personal Identity Verification of Contractor Personnel, Jan 2011
- FAR 52.204-13, System for Award Management—Maintenance, Nov 2025
- FAR 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment, Sep 2025
- FAR 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations, Sep 2025
- FAR 52.219-6, Notice of Total Small Business Set-Aside, Nov 2025
- FAR 52.222-3, Convict Labor, Jun 2003
- FAR 52.222-19, Child Labor—Cooperation with Authorities and Remedies, Nov 2025
- FAR 52.222-36, Equal Opportunity for Workers with Disabilities, Nov 2025
- FAR 52.222-41, Service Contract Labor Standards, Aug 2018
- FAR 52.222-42, Statement of Equivalent Rates for Federal Hires, May 2014
- FAR 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment, Multiple Year and Option Contracts, Aug 2018
- FAR 52.222-62, Paid Sick Leave Under Executive Order 13706, Jan 2022
- FAR 52.222-90, Addressing DEI Discrimination by Federal Contractors (Apr 2026)
- FAR 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts, Nov 2025
- FAR 52.223-23, Sustainable Products and Services, Nov 2025
- FAR 52.232-33, Payment by Electronic Funds Transfer—System for Award Management, Oct 2018
- FAR 52.237-2, Protection of Government Buildings, Equipment, and Vegetation, Apr 1984

Service Contract Labor Standards Clauses

The contractor shall comply with the following FAR clauses for commercial services:

- FAR 52.222-41, Service Contract Labor Standards, Aug 2018
- FAR 52.222-42, Statement of Equivalent Rates for Federal Hires, May 2014
- FAR 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment, Multiple Year and Option Contracts, Aug 2018

FAR 52.222-42 Statement of Equivalent Rates for Federal Hires

May 2014

This statement is for information only. It is not a wage determination.

Employee Class	Monetary Wage — Fringe Benefits
Janitor	$18.68 + Fringe

Other Applicable Clauses

The following clauses are incorporated by reference:

- FAR 52.217-8, Option to Extend Services, Nov 1999
- FAR 52.217-9, Option to Extend the Term of the Contract, Mar 2000
- FAR 52.245-1, Government Property, Sep 2021
- FAR 52.245-9, Use and Charges

FAR 52.217-8 Option to Extend Services

Nov 1999

The Contracting Officer may exercise the option by written notice to the contractor within **30 calendar days prior to contract expiration**.

FAR 52.217-9 Option to Extend the Term of the Contract

Mar 2000

Paragraph (a): The Government may extend the term of this contract by written notice to the contractor within **30 calendar days prior to contract expiration**, provided that the Government gives the contractor preliminary written notice of its intent to extend at least **60 calendar days** before the contract expires.

Paragraph (c): The total duration of this contract, including the exercise of any options under this clause, shall not exceed **five years and six months**.

AGAR Clauses

This solicitation incorporates one or more Agriculture Acquisition Regulation clauses by reference, with the same force and effect as if they were given in full text.

Upon request, the Contracting Officer will make their full text available.

The full text of the clause may also be accessed electronically at:

https://www.usda.gov/guidance-documents/acquisition-policy/ocp/usda-agar30-sept-26pdf

The following AGAR clauses are incorporated:

- AGAR 452.204-70, Modification for Contract Closeout, Apr 2026
- AGAR 452.204-71, Personal Identity Verification and Workforce Integrity of Contractor Employees, Apr 2026
- AGAR 452.236-70, Electronic Submission of Payment Requests, Sep 2026

52.252-1 Solicitation Provisions Incorporated by Reference

Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text.

Upon request, the Contracting Officer will make their full text available.

The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the

full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer.

The full text of a solicitation provision may also be accessed electronically at:

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

Instructions to Offerors

FAR 52.212-1, Instructions to Offerors—Commercial Products and Commercial Services, Nov 2025, is incorporated by reference.

FAR 52.212-1 is amended as follows:

SAM Registration

Quoters must have an active entity registration in the System for Award Management to submit a quotation and to be eligible for award.

Submission Format

Acceptable document types for submission are:

- PDF
- Microsoft Word-compatible files
- Microsoft Excel-compatible files

Period for Acceptance of Offers

The offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions

Questions shall be submitted by email to:

Stephen Holly
Email: **stephen.holly@usda.gov**

Questions are due no later than:

November 10, 2026, at 10:00 AM Mountain Time

This deadline is intended to allow sufficient time for the Government to respond before the solicitation closes.

Offerors shall include the solicitation name and solicitation number in the subject line of the email.

Required Representations and Certifications

The following provisions are incorporated by reference:

- FAR 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements—Representation, Jan 2017
- FAR 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations—Representation, Sep 2025
- FAR 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction Under Any Federal Law, Sep 2025
- FAR 52.240-90, Security Prohibitions and Exclusions Representations and Certifications, Nov 2025

Additional Applicable FAR Provisions

The following provisions are incorporated by reference, as applicable:

- FAR 52.204-7, System for Award Management—Registration, Nov 2025
- FAR 52.217-5, Evaluation of Options, Nov 2025
- FAR 52.237-1, Site Visits, Apr 1984

Notice for Filing Agency Protests

United States Department of Agriculture Protest Procedures

The United States Department of Agriculture is committed to fair, transparent, and efficient acquisitions. Interested parties with concerns about this solicitation are encouraged to seek resolution through the following USDA procedures.

Tier 1: Contracting Officer Concern Resolution

Submission

Interested parties with concerns about either the solicitation or subsequent award should first submit their concern directly to the Contracting Officer, providing sufficient detail to allow the Contracting Officer to understand and assess the issue.

Process

The Contracting Officer will review the concern, seek clarification as needed, and engage with the interested party to attempt prompt resolution.

Review Timeline

The Contracting Officer will make every effort to provide a response or resolution within 10 business days of receiving the concern.

Effect on Award or Performance

Tier 1 engagement is not considered an official notification of filing an agency protest and does not pause solicitation deadlines, delay award decisions, or suspend contract performance.

Next Steps

If the matter cannot be resolved at Tier 1, the interested party may file a written agency protest under Tier 2.

USDA encourages all parties to seek resolution with the Contracting Officer before filing an agency protest.

Tier 2: Agency Protest

If concerns cannot be resolved at Tier 1, an interested party may file a written agency protest with either the Contracting Officer or the USDA Independent Review Authority.

The decision by the USDA Independent Review Authority is an alternative to a decision by the Contracting Officer. The USDA Independent Review Authority will not consider an appeal of the Contracting Officer's decision on an agency protest.

The protest must state whether the protester elects review by the Contracting Officer or by the USDA Independent Review Authority. If no election is stated, the Contracting Officer will decide the protest.

Required Information

Protests shall include the information set forth in FAR 33.104-4(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.

Submission

Agency protests should be submitted electronically to:

SPE.inquiry@usda.gov and to the Contracting Officer identified in the solicitation.

Timeliness

Protests must be filed within the timeframes specified in FAR 33.104.

Effect on Award or Performance

Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined to be in the best interest of the Government.

Review Timeline

USDA strives to resolve agency-level protests within 35 business days of receipt.

Election of Forum

By filing a protest with USDA, the protester agrees not to file a protest on the same matter with the Government Accountability Office or any other external forum while the agency protest is pending. If such a protest is filed externally, the USDA agency protest will be dismissed.

Questions

Questions regarding this notice or protest procedures should be directed to the Contracting Officer identified in this solicitation.